

2. 9:00 AM CASE NUMBER: C23-01467
CASE NAME: BILLY HOLDMAN VS. STEPHAN LINDSTROM
*HEARING ON MOTION IN RE: SUBSTITUTE OCTAVIA HOLMAN AS ADMINISTRATOR OF ESTATE
FILED BY: HOLDMAN, BILLY
TENTATIVE RULING:

Granted.

3. 9:00 AM CASE NUMBER: C23-02656
CASE NAME: MARIA ANGUIANO VS. JOHN BALQUIST
*HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL (FOR PLAINTIFF CATALINA MARTINEZ)
FILED BY:
TENTATIVE RULING:

Granted. The order granting counsel's motion to be relieved as counsel for Catalina Martinez shall be effective upon the filing of the proof of service of the signed order upon the client.

4. 9:00 AM CASE NUMBER: C23-02994
CASE NAME: NICOLETTE GRANZELLA VS. STEVEN SACKS
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: PRIME SMOKED MEATS, INC.
TENTATIVE RULING:

Before the Court is Defendant Prime Smoked Meats, Inc. ("Defendant" or "Prime Smoked Meats")'s Demurrer to Plaintiff Nicolette M. Granzella, Successor Trustee of the Richard P. Granzella Trust, as Amended and Restated ("Plaintiff")'s First Amended Complaint ("FAC").

The FAC alleges causes of action for (1) breach of fiduciary duty (against Sacks), (2) accounting (all Defendants), (3) conversion (all Defendants), (4) constructive trust (all Defendants), (5) false promise (all Defendants), (6) intentional misrepresentation (against Sacks), (7) negligent misrepresentation (against Sacks), (8) constructive fraud (all Defendants), (9) negligence (all Defendants), and (10) financial elder abuse (against Sacks).

Defendant demurs to the third, fifth, and eighth causes of action pursuant to § 430.10(e) on several grounds.

For the following reasons, the Demurrer is **overruled**.

Brief Factual Allegations

This case arises out of the shutdown of a family business, Prime Smoked Meats. Prime Smoked Meats was formed in 1958 by Al Sacks, who left the business to his children Steven Sacks and Lanie Sacks-Granzella. Plaintiff is a successor trustee of the Richard P. Granzella Trust, which holds the 50% interest in Prime Smoked Meats Richard P. Granzella inherited from Lanie Sacks-Granzella upon her death. The First Amended Complaint alleges that, among other things, Granzella has been denied a one-half share of the proceeds from the sale of the warehouse out of which Defendant operated.

Legal Standard

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday*